

JDF 477	Motion to Seal Non-Conviction Records (simplified Process for Non-Convictions)	
1. Court ☐ District ☐ County Colorado County: <u>El Paso</u> Court Address: _____		<i>This box is for court use only.</i>
2. Parties to the Case Plaintiff: People of the State of Colorado v. Defendant: <u>Maria-Alejandra O'Shaughnessy-Whitfield</u>		
		3. Case Details Number: <u>2024CR0011882-SUPPLEMENTAL</u> Division: _____ Courtroom: _____

4. Background

I file this motion under Colorado Revised Statutes (C.R.S.) sections (§§) 24-72-705 or, for convictions vacated through C.R.S. § 18-1-410.7(5)(b), C.R.S. § 24-72-707.

5. My Information *(the Defendant)*

Full Name: Maria-Alejandra O'Shaughnessy-Whitfield Birth Date: 1968-12-31
 Current Mailing Address: *(with city/state/zip)* _____
 Phone: (719) 555-0199 ext. 4417 Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

6. Grounds for Sealing Records

- ☐ I was acquitted of all charges on _____
- ☐ The case was completely dismissed on _____, and the dismissal was not part of a plea agreement in a separate case.
- ☐ The Court vacated my conviction in this case because it found I was the victim of human trafficking when the offense occurred. C.R.S. § 18-1-410.7(5)(b).
- ☐ I completed a diversion agreement on _____
- ☐ I completed a deferred judgment and sentence on _____, and the deferred judgment and sentence does not pertain to any of the following offenses:
- a) A felony offense concerning the holder of a commercial driver's license or the operator of a commercial motor vehicle under C.R.S. § 42-2-402.
 - b) A felony offense for which the factual basis involved unlawful sexual behavior under C.R.S. § 16-22-102(9).

7. Affirmations

I affirm that:

- a) I do not owe any restitution, or the Court has vacated such order(s).
- b) The records, in this case, do not pertain to underage ethyl alcohol, marijuana, and paraphernalia offenses that are subject to the procedure set forth in C.R.S. § 18-13-122, and this case contains at least one charge that is not a class 1 misdemeanor traffic offense, class 2 misdemeanor traffic offense, class A traffic infraction, or class B traffic infraction. Charges in this case were not dismissed pursuant to C.R.S. § 16-8.5-116.

8. Records to be Sealed

Agencies having records related to this case are: *(check all that apply)*

- ☐ Prosecuting Attorney
- ☐ Sheriff's Department
Mailing Address: _____
- ☒ Colorado Bureau of Investigation *(Required)*
ATTN Identification-Seals, 690 Kipling St. STE 3000, Lakewood, CO 80215
- ☐ Law Enforcement: (Name) _____ Case Number: _____
Mailing Address: _____
- ☐ Other: _____
Mailing Address: _____

Arrest number: *(from fingerprint card)* _____ Date: _____

I respectfully request that any criminal justice records, except identifying information, related to this case be sealed promptly.

9. Certificate of Service

On *(enter service date)* _____

I certify that I sent a copy of this document to the prosecuting attorney by: *(select one)*

- ☐ Colorado Courts E-Filing. *(only available to lawyers)*
- ☐ Regular Mail, addressed to:
Name & full address: _____
- ☐ Other: *(explain)* _____

10. Verified Signature

I declare under penalty of perjury under the law of Colorado that the foregoing is true and correct.

Executed on the *(date)* _____ day of *(month)* _____ *(year)* _____

at City: *(or other location)* _____

and State: *(or country)* _____

Print Your Name: _____

Your Signature: _____

Counsel Signature: *(if any)* _____

☐ Esq. Reg No. _____

JDF 478

Order to Seal Non-Conviction Records

A. Court

☐ District ☐ County

Colorado County: El Paso

Mailing Address: _____

This box is for court use only.

B. Parties to the Case

Plaintiff: People of the State of Colorado

V.

Defendant: Maria-Alejandra O'Shaughnessy-Whitfield

C. Case Details

Number: 2024CR0011882-SUPPLEMENTAL

Division: _____

Courtroom: _____

1. Background

The Court finds the Defendant is eligible for relief under C.R.S. § 24-72-705 or, for convictions vacated through C.R.S. § 18-1-410.7(5)(b), C.R.S. § 24-72- 707.

2. Defendant's Information

a) Full Name: Maria-Alejandra O'Shaughnessy-Whitfield

b) Birth Date: 1968-12-31

c) Mailing Address: 1188 Upper Notch Crossing Road, Apartment 14B, Colorado Springs, Colorado 80921-2214

City: Colorado Springs ST: Colorado Zip Code: 80921-2214

3. Records to be Sealed

☐ County Court case number:

☐ District Court case number: _____

☐ Law Enforcement Agency: _____

Case/Arrest number: _____ Dated: _____

Mailing Address: _____

☐ Colorado Bureau of Investigation *(required)*

ATTN Identification-Seals, 690 Kipling St. STE 3000, Lakewood, CO 80215

☐ _____

☐ _____

☐ _____

4. Court Orders

a) Records Sealed

The Records must be sealed immediately, except for basic identifying information. If an inquiry is made, the Person in Interest and Criminal Justice Agency may reply that no such records exist. This order applies to public and private custodians of the record.

b) Case Sealed

The Court directs the Clerk of Court to seal the criminal cases listed above.

c) Service

The Court's clerk shall provide a copy of this Order to the Colorado Bureau of Investigation (CBI) and to each record custodian checked above within 28 days of disposition. C.R.S. §§ 24-72-705(1)(a.5) and 703(8).

d) Other Orders

5. So Ordered

By: _____
☐ Judge ☐ Magistrate

Dated: _____